

1 ENGROSSED HOUSE
2 BILL NO. 4336

By: Moore of the House

3 and

4 Gollihare of the Senate
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7 An Act relating to professions and occupations;
8 amending 59 O.S. 2021, Section 650, which relates to
9 interventional pain management license; adding
10 definition; modifying definitions; requiring
11 penalties for violations; and providing an effective
12 date.

13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. AMENDATORY 59 O.S. 2021, Section 650, is
15 amended to read as follows:

16 Section 650. A. This act shall be known and may be cited as
17 the "Oklahoma Interventional Pain Management and Treatment Act".

18 B. As used in this section:

19 1. "Acute pain" as defined in the Uniform Controlled Dangerous
20 Substances Act, Section 2-101 et seq. of Title 63 of the Oklahoma
21 Statutes;

22 2. "Chronic pain" means a pain state which is subacute,
23 persistent and intractable as defined in the Uniform Controlled
24

1 Substances Act, Section 2-101 et seq. of Title 63 of the Oklahoma
2 Statutes;

3 ~~2.~~ 3. "Fluoroscope" means a radiologic instrument equipped with
4 a fluorescent screen on which opaque internal structures can be
5 viewed as moving shadow images formed by the differential
6 transmission of X-rays throughout the body; and

7 ~~3.~~ 4. "Interventional pain management" means the practice of
8 medicine devoted to the diagnosis and treatment of chronic pain,
9 through the use of such techniques as:

- 10 a. ablation of targeted nerves,
- 11 b. percutaneous precision needle placement within the
12 spinal column with placement of drugs such as local
13 anesthetics, steroids, analgesics in targeted areas of
14 the spinal column, or
- 15 c. surgical techniques, such as laser or endoscopic
16 discectomy, intrathecal infusion pumps and spinal cord
17 stimulators.

18 C. It shall be unlawful to practice or offer to practice
19 interventional pain management in this state unless such person has
20 been duly licensed under the provisions of the Oklahoma Allopathic
21 Medical and Surgical Licensure and Supervision Act or the Oklahoma
22 Osteopathic Medicine Act.

23 D. Nothing in this section shall be construed to forbid the
24 administration of lumbar intra-laminar epidural steroid injections

1 or peripheral nerve blocks by a certified registered nurse
2 anesthetist when requested to do so by a physician and under the
3 supervision of an allopathic or osteopathic physician licensed in
4 this state and under conditions in which timely on-site consultation
5 by such allopathic or osteopathic physician is available.

6 E. A certified registered nurse anesthetist shall not operate a
7 freestanding pain management facility without direct supervision of
8 a physician who is board-certified in interventional pain management
9 or its equivalent. Any violation of this section by a registered
10 nurse shall be considered unprofessional conduct under the Oklahoma
11 Nursing Practice Act. Such violation may be subject to the full
12 range of penalties available under the Nursing Practice Act
13 including but not limited to administrative fines or discipline up
14 to revocation of a license as decided by the respective Board.

15 F. Except subsection E of this section, any violation of this
16 section by a physician shall be considered unprofessional conduct
17 under the Oklahoma Allopathic and Surgical Licensure and Supervision
18 Act or the Oklahoma Osteopathic Medicine Act. Such violation can be
19 subject to the full range of penalties available under the acts
20 including but not limited to administrative fines or discipline up
21 to revocation of a license as decided by the respective Board.

22 SECTION 2. This act shall become effective November 1, 2026.
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1 Passed the House of Representatives the 11th day of March, 2026.

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4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the _____ day of _____, 2026.

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9 Presiding Officer of the Senate